

2:00 PM

LINE 3

22-CIV-03053

ELIZABETH CHUNG, ET AL. VS. DALE WADE, ET AL.

ELIZABETH CHUNG

DALE WADE

MICHELLE AKERMAN

DAVID A. HARRIS

DALE WADE dba WADE & ASSOCIATES' MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

TENTATIVE RULING:

The court GRANTS the three unopposed motions for good faith settlement brought by: defendant and cross-defendant Maiden Stone, Inc. (Maiden Stone); cross-defendant Gambrioli Developments, Inc. (Gambrioli); and cross-defendant Dale Wade dba Wade & Associates (Wade).

When non-settling parties do not oppose a motion on the good faith issue, a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261.) The court does not need to analyze the factors set forth in *Tech-Bilt, Inc. v. Woodward-Clyde Associates* (1985) 38 Cal.3d 448 (*Tech-Bilt*) when the settlements are unopposed. However, each of the settling parties have introduced evidence demonstrating that each of the *Tech-Bilt* factors have been met.

The Hon. Nancy L. Fineman has been the single assigned judge since the inception of the case. Plaintiffs claim that approximately 7,000 square feet of limestone pavers installed in their patio failed. The court notes that it has been a hard-fought case and extensively litigated, including depositions of experts. Resolution of the case occurred on the eve of trial.

Defendant and cross-complainant Maiden Stone, the manufacturer of the pavers, has entered into a settlement agreement with plaintiffs for \$100,000.00. Maiden Stone provides a comprehensive analysis of the facts of the case, the potential liability of others, the potential issues of proof with plaintiff's case, including damages. Maiden Stone demonstrates that its settlement is within the ballpark of its potential liability and that the settlement was negotiated at arms-length. There is no evidence to the contrary. The court finds that Maiden Stone's settlement with plaintiffs was in good faith. The court grants Maiden Stone's request for judicial notice.

Cross-defendant Gambrioli was the general contractor and has settled with plaintiff for \$100,000.00. Gambrioli provides the background of the case and the reasons that it believes that its settlement is in good faith. Based upon its analysis of liability, it believes that it is paying more than its potential liability and its settlement is in the ballpark of its potential liability. There is no evidence to the contrary. Gambrioli also establishes that the settlement was negotiated at arms-length. The court finds that Gambrioli's settlement with plaintiffs is in good faith.

On September 24, 2025, Wade, who is now only a cross-defendant, filed an application for good faith settlement with plaintiff pursuant to Code of Civil Procedure section 877.6, subdivision (a)(2), which was opposed. The court denied that application based upon the objections. Wade's current motion is based upon a settlement agreement with Maiden Stone resolving Maiden Stone's claim against Wade for \$50,000.00. In exchange, Maiden Stone's cross-complaint against Wade will be dismissed. Wade provides the background of the case, his analysis of liability, and that the settlement was negotiated at arms-length and is in the ballpark of his potential liability. There is no evidence to the contrary. The court finds that Wade's settlement with Maiden Stone is in good faith.

The court commends the parties for their work in resolving this case. Based upon the court's knowledge of the case, the settlement is in the best interests of all parties as trial would have been expensive, stressful, and, while the settling parties provide a comprehensive analysis of the case and their potential liability, the actual results may have been different (either more or less than the settlements). The settlements provide resolution to all parties and take away the risks of trial. The court approves these settlements.

The court sets an OSC re dismissal for January 5, 2027 at 9:30 a.m. in Department 4. If the parties need more time for all dismissals to be filed, they shall jointly email Department 4 no later than five court days before the hearing.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for each of the moving parties shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The court waives the requirements of Local Rule 3.403(b)(iv). The court has not included language in the parties' proposed orders barring future claims, but that language should be added to the proposed orders. Absent objection from any of the parties, the moving parties may also add any other language necessary to make sure that the case against the moving party is resolved.

2:00 PM

LINE 4

22-CIV-03053 ELIZABETH CHUNG, ET AL. VS. DALE WADE, ET AL.

ELIZABETH CHUNG
DALE WADE

MICHELLE AKERMAN
DAVID A. HARRIS

GAMBRIOLI DEVELOPMENT, INC.'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

TENTATIVE RULING:

See the tentative ruling for Wade's motion for good faith settlement, which tentative ruling is incorporated by reference as if set forth fully herein.
